

In the Name of Allah, the Most Compassionate, the Most Merciful

Aiken Muslim Association (AMA)

BYLAWS

(As amended January 2024)

INTRODUCTION: We, the members of Aiken Muslim Association (AMA), agree to adopt the following bylaws for our organization.

ARTICLE I: DESCRIPTION

SECTION 1: NATURE

AMA shall be a not-for-profit organization; organized exclusively for purposes pursuant to section 501(c)(3) of the Internal Revenue Code.

SECTION 2: OBJECTIVES

The aim and purpose of AMA will be to serve the best interests of Muslims in Aiken County, South Carolina, within the framework of Islam and by adhering to the guidelines provided in the Qur'an and the Sunnah. Towards this end, AMA shall:

- a. Promote unity and collective activities among Muslims,
- b. Impart a good understanding of the Islamic faith and its values to both Muslims and non-Muslims through its events and activities, and
- c. Promote understanding between Muslims and non-Muslims.

SECTION 3: AFFILIATION

- a. AMA shall serve as an affiliate of the Islamic Society of North America (ISNA).
- b. Real estate properties purchased by AMA shall be placed in a trust to be transferred to North American Islamic Trust (NAIT) upon dissolution of the Association. [Note: The AMA property at 3604 Trolley Line Road, Aiken, SC was deeded to North American Islamic Trust, a Delaware corporation, on February 18, 2022.]

SECTION 4: RESTRICTIONS

Pursuant to Appendix A to these Bylaws, Conflict of Interest Policy, no AMA activity may be undertaken that inappropriately benefits any member of the Board or other AMA committee. Neither membership nor any service or benefit of AMA shall be determined on the basis of sex, ethnicity, race, or nationality.

ARTICLE II: MEMBERSHIP

SECTION 1: GENERAL ASSEMBLY MEMBERSHIP

The General Assembly of AMA will consist of members defined as follows. Members are those who have met the following criteria, as interpreted by the Board. A Member of AMA must:

- a. Be Muslim
- b. Be at least eighteen years of age
- c. Pledge to abide by the Bylaws of AMA
- d. Pay an annual membership fee as recommended annually in February by the Board and approved in March by the General Assembly. A prospective member may request a waiver of dues by making a confidential request to the President or Treasurer.
- f. Submit form providing name(s) and contact information and confirming compliance with items a-through-c, above. The form remains valid from year-to-year, unless/until dues are unpaid for a period in excess of 12-months.

There are two forms of membership:

- i. Single Membership: Filled by a single person
- ii. Family Membership: Filled by a single or married person to claim membership for all of his/her family members at once. Family is defined as husband and wife as voting members, and their children or other dependents under the age of eighteen as non-voting members. Children over the age of eighteen should join separately as voting members.

SECTION 2: HONORARY MEMBERS

Honorary Members of AMA are:

- a. Family members of AMA members that are children under age eighteen
- b. Non-Muslim family members of AMA members that were included in a family membership form
- c. Any individual AMA chooses to bestow this honor upon with the permission of the Board

SECTION 3: DURATION OF MEMBERSHIP

Memberships last for the duration of the calendar year for which the membership fee is paid.

SECTION 4: MEMBERSHIP RIGHTS

- a. A member has the right to vote and may serve as a Board member, if elected.
- b. An honorary member may not vote or serve as a Board member.

SECTION 5: REVOKING MEMBERSHIP

The Board may revoke a member's or honorary member's membership if the member/honorary member fails to follow these Bylaws.

ARTICLE III: OFFICE BEARERS

SECTION 1: ELIGIBILITY FOR MEMBERSHIP

Members of the Board will be elected for one year and must be members of AMA.

SECTION 2: BOARD OF DIRECTORS

- a. The Board of Directors of AMA consists of six Officers as described below.
- b. A single individual may fulfill the duties of two Officers at the same time; however, such an individual will count as only one Officer and one person present in quorum, and will only have one vote in any decision made by the Board.

- b. Each Officer may appoint a committee to help with the objectives of their office.
- c. It is the responsibility of each Officer to recruit members of their committee.
- d. Committees may work independently.
- e. Each Officer shall report on the activities of their office monthly – either in a meeting of the Board, or in writing to all Board members. Written reports may be distributed electronically, including on-line.
- f. If an activity is objected to by one or more Board member, then a quorum of the Board shall vote to decide whether the activity should be terminated or not. A simple majority of the quorum shall prevail.
- g. Unless explicitly stated otherwise, “Board approval” means a simple majority vote of a quorum of the Board.
- h. All Board members are volunteers and will not be paid by AMA. Expenses of a Board member incurred in pursuit of their official duties may be reimbursed if requested by the Board member and approved by the Board.

SECTION 3: DUTIES OF THE PRESIDENT

The President shall be responsible for:

- a. Work for the promotion and advancement of AMA and for the implementation of its Bylaws
- b. General management of the activities of AMA
- c. Controlling funds and expenses of AMA as defined in Article IV: Finance
- d. Calling and presiding over meetings of the Board and General Assembly.
- e. Jointly with the Public Relations Coordinator, notifying members of the Board and the General Assembly of meetings, and preparing an agenda for each meeting; Board members shall be notified at least five-days prior to a Board meeting with intent to conduct decision-making; General Assembly members shall be notified at least two-weeks prior to a meeting with intent to conduct decision-making.
- f. Acting as or appointing a spokesperson as and when required — jointly with the Public Relations Coordinator, maintaining good image of AMA to the public
- h. Assigning special duties and responsibilities to Officers or General Assembly members as needed
- i. Establishing new committees as needed, including appointing committee chairpersons, and coordinating the work of all committees with the approval of the Board; and
- j. Present the annual report of the Board to the General Assembly at its annual meeting.

SECTION 4: DUTIES OF THE EDUCATION COORDINATOR

The Education Coordinator shall be responsible for:

- a. Friday khutbas and funerals
- b. Maintaining AMA libraries, if any
- c. Weekly study circles in various languages, if any
- d. The Muslim school, if any; and
- e. Jointly with the President and Public Relations Coordinator, sustaining dawah/outreach programs, as appropriate, including but not limited to
Ensuring the availability of dawah/outreach materials (books, flyers, etc.)
Coordinating and collaborating with and advising the events committee on organizing dawah/outreach events;
Maintaining the prison dawah program, if any, and
- f. Jointly with the Treasurer, establishing and maintaining AMA’s sadaqah program.

SECTION 5: DUTIES OF THE EVENTS COORDINATOR

The Events Coordinator shall be responsible for:

- a. The overall structuring and planning of events, including but not limited to parties, Ramadan and Eid activities, and bringing speakers;
- b. Arranging for accommodation and transportation for any speaker that AMA hosts for its events and activities;
- c. Contacting the proposed speaker; inform him/her of the topic and the content of their talk;
- d. Arranging for food, if/when required;
- e. Assigning photographer, moderator, and caterer for the events, as necessary; and
- f. On the day of the event, making sure that everything is in order and all needs have been met.

SECTION 6: DUTIES OF THE TREASURER

The Treasurer shall be responsible for:

- a. Maintaining the record of all the financial transactions of AMA accounts;
- b. Systematic upkeep of books — writing disbursements, receipts, and account reconciliations c. Collecting and depositing all funds received by AMA, including membership fees
- d. Controlling funds and expenses of AMA jointly with the President, as defined by Article IV: Finance
- e. Paying AMA bills
- f. Submitting all required periodic reports to the State of South Carolina and/or the US Internal Revenue Service.
- g. Presenting before the Board and General Assembly a quarterly (or upon Board request) report on the status of the association financial affairs, including anonymous donations and total donations received by AMA, expenses paid and current status of all accounts;
- h. Jointly with the Education Coordinator, establishing and maintaining AMA's sadaqah program.

SECTION 7: DUTIES OF THE PUBLIC RELATIONS COORDINATOR

The public relations coordinator shall be responsible for:

- a. Acting as the secretary of AMA;
- b. Jointly with the President, notifying members of the Board and the General Assembly of meetings, and preparing an agenda for each meeting
- c. Preparing and maintaining the minutes of all the meetings of the Board and the General Assembly
- d. Serving as Acting President in the event that the President is absent and has not designated anyone else to act in his/her stead
- e. Jointly with the President, maintaining good image of AMA to the public
- f. Establishing liaisons to ensure good relations with related organizations
- g. Maintaining close working relationship with the media including but not limited to newspapers, radio stations and TV channels, as appropriate; and
- h. Maintaining AMA website and/or other social media, as appropriate.

SECTION 8: DUTIES OF THE MAINTENANCE COORDINATOR

- a. Preparing an annual Maintenance and Improvement Plan (MIP) for all AMA facilities, including any foreseen use of paid contractors, for presentation and approval, with or without modification, at the March meeting of the Board
- b. Executing the MIP as approved by the Board, relying on AMA volunteers to the extent practical; any use of paid contractors not included in the MIP shall require pre-approval by the Board.

SECTION 9: BOARD MEETINGS

- a. All Board meetings shall be called by the President per Item 3.d, except that a meeting may be called by petition of a majority of Board Members, with the petition citing the agenda, time, date and location (or on-line) for the meeting; In all cases, notice of the meeting shall be given at least five-days prior to the meeting. Notice may be given by US mail, telephone call, or email – to address(es) provided by each Member.
- b. Board meetings may be held in-person, virtually (via internet), or as a hybrid of both methods at the discretion of the President. Absent compelling reason(s) to the contrary, at least one meeting-per-six-month period should be held in-person.
- c. Decisions are made at meetings called properly according to Article II, Section 3, Item e. Any decision of the Board requires that a Quorum be present, physically or on-line. A Quorum is at least four Board members. Nominally, either the President or the Acting President presides. In the event neither of these is available, another Office may preside, with written permission of either the President or Acting President.
- d. Each Board decision shall be reached in a parliamentary way, with discussion prior to voting. Each member of the Board present has one vote. Consistent with the Conflict of Interest Policy attached to and made part of these Bylaws, a member who has a conflict of interest, financial or otherwise, related to a decision at hand should abstain from voting on that decision. A member abstaining will not be counted in determining if a quorum is present.
- b. If there is a tie, then the vote of the President is counted as two votes in order to break the tie.
- c. A simple majority vote wins.

SECTION 10: TERM LIMIT

A General Assembly member shall not serve as a Board member more than three consecutive terms.

ARTICLE IV: FINANCE

SECTION 1: CONTRIBUTIONS/DONATIONS

- a. The Board may accept any contribution in any form from any source consistent with the principles of Islam and the purposes of AMA.
- b. Donations to AMA shall not constitute payment of membership fees, unless it is clearly designated by the payer and recorded as such by the Treasurer.

SECTION 2: USAGE OF FUNDS

Two kinds of funds are recognized:

- a. Unrestricted Funds: Funds that can be used for general purpose.
- b. Restricted Funds: All funds collected for a specific cause. All funds collected for a specific cause shall be used for that particular cause, only.

However, if there is a valid reason, as deemed by the President, to authorize its use for a different purpose within the goals and objectives of AMA, the following criteria are to be followed:

- a. Unless the Restricted Funds are from anonymous donor(s), the donor(s) are to be contacted to obtain their agreement to use the funds for an alternate purpose. If a donor disagrees, the Restricted Funds will not be used for the alternate purpose. The President shall make all reasonable effort to contact the donor(s).
- b. Restricted Funds not exceeding \$5,000: At least three Board members including the President are to

agree on this.

c. Restricted Funds exceeding \$5,000: A General Assembly meeting is to be called for voting on this expenditure, using the procedure described in Article V: Amendments.

SECTION 3: ACCOUNTS

AMA shall maintain at least one bank account. If/when the steady-state total balance of AMA accounts exceeds \$50,000 the following separate accounts shall be maintained.

a. Operating Account: This bank account is to have a maximum fund not exceeding \$5,000. This account is supplied only with funds from the non-operating account. One signature, President or Treasurer, is sufficient for withdrawals from this account.

b. Non-Operating Account: This bank account is to have the remaining funds of AMA. This account is supplied with all donations and any other income that AMA receives. All check withdrawals from this account or transfers to the Operating Account must be co-signed by the President and the Treasurer.

SECTION 5: AUTHORIZATION OF EXPENDITURES

The President shall not authorize expenditure of more than \$1,000 on a single expense without the approval of the Board.

SECTION 6: BUDGET

The President and Treasurer shall develop an annual Budget, including anticipated revenues and anticipated expenditures, with input as necessary from other members of the Board. Within one-month of taking office the proposed budget shall be distributed to all Board members for review. The Board, meeting as a deliberative body, shall negotiate and approve a budget for AMA. Individual Officers, with Treasurer oversight, shall be responsible for limiting expenditures to the level of the budget. Any proposal for which expenses exceed the budget, if limited below \$1000 may be approved by the President. Exceeding the budget by more than \$1000 requires amendment of the Budget by the Board. The Treasurer's quarterly report per Section 6, item g, shall include analysis of the balance between revenues and expenditures, with recommendation of any action proposed to rectify substantial imbalance.

SECTION 7: AUDITING

a. Each calendar year, the Board shall nominate as auditors two members of the General Assembly who are not members of the current Board nor running for a Board position in an up-coming election and who have basic knowledge and understanding of accounting and audit procedures.

If there are not two eligible members of the General Assembly, the Board shall retain services, gratis or paid, qualified auditor(s) from the broader Aiken/Augusta community.

b. The auditors shall audit AMA accounts for the year and submit a report to the Board and General Assembly.

ARTICLE V: AMENDMENTS

SECTION 1: PROPOSAL

a. A proposal for an amendment(s) to these Bylaws must be signed by at least one-tenth of the General Assembly and be submitted to the Board in writing.

b. The Board will then review the matter and arrange to have it voted on by the members.

c. The President and/or the Board shall call a meeting of the General Assembly for the purpose of

voting on the proposal within thirty-days after receipt of the written proposal.

SECTION 2: QUORUM

The Quorum requirement for voting on amendments shall be half of the total members of the General Assembly plus one.

SECTION 3: VOTES NEEDED FOR AN AMENDMENT

An affirmative vote by two-thirds of the General Assembly present shall be necessary for the adoption of any amendments.

SECTION 4: IF QUORUM IS NOT REACHED

If half of the members are not present in a General Assembly meeting called for voting on the proposed amendment(s), then:

- a. Another General Assembly meeting shall be called for the same purpose.
- b. The time of the next meeting is to be between seven days and thirty days after the failed meeting. The date and time of this second meeting is to be voted on by the members of the General Assembly present at the first meeting, with at least two-thirds majority to approve;
- d. In the second General Assembly meeting, the quorum requirement as stated in Section 3 of this Article shall be waived and the proposed amendment(s) shall be discussed and adopted by two-thirds majority of members of the General Assembly present at that time.

SECTION 5: ADOPTION AND ENFORCEMENT

If approved, the proposed amendment(s) shall be adopted and in force, effective immediately.

ARTICLE VI: IMPEACHMENT

SECTION 1: PROPOSALS

- a. If one or more Board member(s) is perceived as failing to do their duty or in violation of these Bylaws; then the General Assembly may impeach them, if desired.
- b. A proposal for impeachment of a Board member must be signed by at least half of members of the General Assembly and be submitted in writing to the Board.
- c. Clear reasons must be given as related to compliance with these Bylaws and the general tenets of Islam.
- d. The Board will then review the matter and arrange to have it voted on by the members of the General Assembly within thirty-days of receipt of the signed proposal.
- f. If the proposal is to impeach a majority of Board members, and if the Board violates Item (d) of this Section, then the identified Board members are automatically impeached.

SECTION 2: QUORUM

The Quorum requirement for voting on impeachments shall be half of the total members of the General Assembly plus one.

SECTION 3: VOTES NEEDED FOR AN IMPEACHMENT

An affirmative vote by two-thirds of the members of the General Assembly present shall be necessary for the impeachment of a Board member.

SECTION 4: AFTER IMPEACHMENT

- a. If a Board member is impeached, then the position is announced vacant immediately and will be dealt with as described in Section 3 of Article VII: Elections.
- b. A new Board Member to be voted in immediately, in the same general assembly meeting, and that will assume the responsibility of the Board until the end of the term of the impeached Board.

ARTICLE VII: ELECTIONS

SECTION 1: ELECTION TIME a. Annual elections shall be held on the last Sunday of January.

b. The out-going Board shall formulate a transition plan prior to elections and will hold no authority over decision-making following the elections,

SECTION 2: ELECTION COMMITTEE

a. The Board shall establish an Election Committee as follows:

i. Announced and advertised to AMA General Assembly by the first Friday of December of the preceding year — using AMA social media accounts and posters, as appropriate; and immediately after Friday prayer;

ii. Consisting of three AMA members, but no Board members;

iii. Members of the Election Committee cannot run for office in the upcoming elections;

b. The structure of the Election Committee is as follows:

i. The three members are to elect a chair of the committee and two assistants from among themselves.

ii. The Chair is to act as the spokesperson of the committee and announces the results of the election.

c. The duties of the Election Committee are:

i. Collecting nominations by the end of Friday two-weeks prior to the elections;

ii If no nominations are received for one or more position(s), identify potential candidates and seek to obtain the candidates' agreement to be nominated for the office.

iii. Announcing the names of individuals nominated for each Board position on or before the end of Friday two-weeks prior to the elections.

ii. Moderate the election procedures, including:

a. providing a process for those unable to attend the elections to vote by proxy;

b. providing for secret ballots for each Board position; and

c. counting ballots and announcing results for each Board position.

SECTION 3: POSITION VACANCIES

In case a Board member's position becomes vacant during the year then

a. The vacancy is to be announced and advertised to AMA General Assembly immediately through AMA social media, posters, and immediately after Friday prayer;

b. In the meantime, the Board may appoint a General Assembly member as an acting Board member that assumes the duties of the vacant position until a new Board member is voted in;

c. An election to fill the vacancy(ies) is to be held as soon as possible, following the same steps as in ARTICLE VII, SECTION 2, except that the objective shall be to hold the election within 30-days following announcement of the vacancy(ies). The Board, Election Committee, and General Assembly shall all make every effort to meet the overall schedule of 30-days for the election process.

SECTION 4: TIE BREAKING

During an election, if more than one candidate for the same position have the same number of votes, then a re-voting on that position will be called for immediately. This will allow members to change their votes or a candidate to turn down their acceptance of nomination to that position. If the tie persists, the Election Committee is to break the tie by the committee's own simple majority vote.

SECTION 5: HANDOVER

The outgoing office holders shall handover all files, documents and any property of AMA at their disposal to the incoming office holders within thirty days of assuming office. The outgoing President shall arrange for the incoming President and Treasurer to control all AMA financial accounts within the same 30-day period.

ARTICLE VIII: MISCELLANEOUS

SECTION 1: FRIDAY PRAYERS

The Jumma khutba shall generally be delivered in English language. A speaker may deliver a khutba in a different language, if desired. If so, an interpreter should be used to accommodate those who do not understand the other language.

SECTION 2: ISLAMIC EVENTS AND CALENDAR

AMA will follow decisions made by the Fiqh Council of North America (affiliate of ISNA) in planning Islamic activities including, but not limited to, Ramadan and Eids. Actual celebration of events will depend on lunar sightings (weather permitting), according to the Sunnah.

SECTION 3: DWELLINGS

Under no circumstances shall any real estate owned by Aiken Muslim Association be used as a dwelling, whether or not a lease contract is executed; and/or whether or not rent is to be paid.

SECTION 4: OVERNIGHT VISITORS

The Board shall establish a process for assuring that travelling individuals and/or groups (e.g., Jama'at al Tabligh) who may stay for a day or more at AMA facilities conduct themselves appropriately. Areas to be addressed include establishing the identity of each individual, establishing liability and limits of liability for AMA and the visitors, establishing limits of behavior (e.g., no sleeping or eating in the prayer hall), and limiting the duration of visits (e.g., no more than one-week per visit).

ARTICLE IX: DISSOLUTION

AMA may be dissolved only with decision of the Board made at a special meeting called for that purpose, and with the subsequent approval by no less than two-thirds (2/3) vote of the General Assembly following the procedure described in ARTICLE V, Amendments. In the event of the dissolution of AMA, the assets shall be applied and distributed as follows:

All liabilities and obligations shall be paid, satisfied and discharged, or adequate provision shall be made therefore. Assets not held upon a condition requiring return, transfer, or conveyance to any other organization or individual shall be conveyed to North American Islamic Trust (NAIT), provided that NAIT is an IRS tax-exempt 501(c)(3) organization at that time. If NAIT is not tax-exempt at the time, the residual assets shall be distributed, transferred, or conveyed, in trust or otherwise, to other Islamic religious, charitable, and/or educational organization(s), organized under Section 501(c)(3) of the Internal Revenue Code, as determined by the AMA Board.

To accomplish this disposition real property, all real estate acquired by AMA may be placed in a separate irrevocable trust, with trustees from both AMA and NAIT, with directed disposition of assets consistent with the preceding paragraph.